



CHAPTER cxix.

An Act to confirm a Provisional Order under the Housing of the Working Classes Act 1890 relating to the Burgh of Port Glasgow. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Housing of the Working Classes Act 1890 and it is requisite that the said Order should be confirmed by Parliament: 53 & 54 Vict.
c. 70.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. Money borrowed by the town council of Port Glasgow for the purposes of the Order confirmed by this Act shall be wholly repaid together with the accruing interest within fifty years from the date of the loan. Repayment
of borrowed
money.

3. This Act may be cited as the Port Glasgow Improvement Order Confirmation Act 1905. Short title.

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S C H E D U L E.

BURGH OF PORT GLASGOW.

Provisional Order for confirming an Improvement Scheme under Part I. of the Housing of the Working Classes Act 1890 relating to the Burgh of Port Glasgow.

WHEREAS the provost magistrates and councillors of the burgh of Port Glasgow being the local authority therein under the Housing of the Working Classes Act 1890 presented to the Secretary for Scotland a petition praying that an Order might be made confirming a scheme prepared by the said local authority under Part I. of the said Act for the improvement of a certain area within the said burgh:

And whereas the estimate required by section 6 of the Housing of the Working Classes Act 1890 is as follows:—

Cost of acquiring the lands and buildings for the purposes of the scheme clearing the sites and incidental works	-	-	£	s.	d.
Expenses of Provisional Order and arbitrations	-	-	47,700	0	0
			1,800	0	0
			£49,500	0	0
Estimated value of surplus lands available for resale feu or rentcharge (exclusive of cost of scheme Provisional Order and confirming Act)	-	-	£18,500	0	0
Nett cost of scheme	-	-	£31,000	0	0

And whereas after inquiry I am of opinion that the scheme so made by the local authority should be confirmed subject to certain modifications and conditions:

And whereas the working-class population occupying the area comprised in the scheme is estimated at two thousand and seven persons and it is proved to my satisfaction that sufficient and suitable accommodation for such population will be provided within the area:

Now therefore in pursuance of the powers vested in me by the said Act I do hereby confirm the following scheme and authorise the same to be carried into execution:—

SCHEME.

1. This scheme may be cited as the Port Glasgow (Housing of the Working Classes Act) Improvement Scheme 1905.

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2. In this scheme the following expressions shall have the meanings hereby assigned to them "The burgh" means the burgh of Port Glasgow "the town council" means the provost magistrates and councillors of the burgh of Port Glasgow "the town clerk" and "burgh surveyor" mean the town clerk and burgh surveyor respectively of the burgh of Port Glasgow "The map" means the map which accompanies this scheme showing the area included therein "The area" means the area coloured red on the map and lies within the burgh and parish of Port Glasgow and county of Renfrew.

3. The unhealthy area in this scheme is the area exclusive of the properties numbered 99 100 101 103 104 105 and 106 on the map The said properties are included in the scheme as necessary for making the scheme efficient for sanitary purposes or for widening existing approaches to the unhealthy area or otherwise for opening out the same for the purposes of ventilation or health.

A duplicate of the map is deposited at the office of the town clerk and a copy of the map or any part or parts thereof certified by the burgh surveyor shall be received in all courts of justice or elsewhere as evidence of the contents thereof respectively.

4. The town council may for the purposes of this scheme and from time to time enter upon purchase take compulsorily and deal with all or any of the lands houses buildings streets lanes closes and passages within the area and take down rearrange or reconstruct all or any of such houses and buildings and dispose of or clear away the materials thereof and close up divert rearrange or reconstruct all or any of such streets lanes closes and passages or parts thereof.

5. The town council may upon the land purchased or acquired by them form and lay out and pave causeway or macadamise and complete in the lines shown on sheet 3A of said map and of such width and gradients as they may see fit all or any of the following new streets and also the widenings extensions and improvements of the existing streets and lanes following viz. :—

- (1) The forming of a new street (No. 1) to extend between Princes Street and Dockhead Street :
- (2) The widening extension and improvement of King Street along the east side thereof commencing at the south-west corner of Custom-house Lane and terminating at the junction with the said new street (No. 1) :
- (3) The widening extension and improvement of a portion of March Lane extending from Barr's Braefoot to said new street (No. 1) :
- (4) The widening extension and improvement of the street called Barr's Braefoot along the north-east side thereof :

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- (5) The forming of a new street (No. 2) running from Barr's Braefoot in an easterly direction along the northern boundary of the Caledonian Railway to the new street (No. 4) herein-after mentioned :
- (6) The forming of a new lane running from new street (No. 2) in an easterly direction along the northern boundary of the Caledonian Railway to the new street (No. 3) :
- (7) The forming of a new street (No. 3) running from the northern boundary of the Caledonian Railway to Bay Street :
- (8) The forming of a new street (No. 4) running from the new street (No. 2) to Bay Street :
- (9) The widening and improvement of Dockhead Street along the west side and of the west end of Bay Street along the south-west side :
- (10) The improvement of another portion of Bay Street along the south side thereof by straightening the building line :
- (11) The widening extension improvement closing up or diverting of such other existing streets lanes courts approaches and passages as may hereafter be determined by the council to be necessary or proper for the purposes of this scheme.

All these new streets and improvements and widenings will lie and be within the burgh and parish of Port Glasgow and county of Renfrew.

6. In laying out the said new streets and widened and extended streets shown on the map the town council may deviate from the lines shown on the map to any extent within the limits of the area and beyond those limits with the consent of the owners lessees and occupiers of the lands through which a deviation is made but not otherwise.

7. The town council may from time to time appropriate any part of the area and also any lands for the time being belonging to them or which they may have power to acquire for the erection of suitable dwellings for the accommodation of persons of the working classes who shall be from time to time displaced within the area.

8. The town council may at any time if they consider it necessary and with the approval of the Secretary for Scotland erect and maintain or otherwise provide on any part of the area or on such other lands as they may acquire suitable dwellings for the accommodation of persons of the working classes displaced as aforesaid.

9. The town council may sell feu lease or otherwise dispose of all or any part of the area either with or without the buildings and erections thereon and that at such rate rent feu-duty or price as may be agreed upon between the parties and failing agreement then the same may be disposed of by public roup.

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10. The town council in any grant or lease of any part of the area may impose conditions and restrictions as to the elevation size and design of the dwelling-houses to be erected thereon and the extent of the accommodation to be afforded thereby and all dwelling-houses or any other buildings to be erected shall be well and substantially built and shall be so situated and constructed as to secure efficient ventilation and shall be furnished with a proper water supply and with proper drainage and other sanitary appliances and apparatus all to the satisfaction of the town council and the town council may enforce the erection and maintenance of all other proper sanitary arrangements.

11. The town council may engage with any body of trustees society company or person to carry the whole or any part of this scheme into effect upon such terms as the town council may think expedient.

12. The town council shall as soon as practicable after the passing of the Act authorising this scheme proceed to carry the same into execution but they may from time to time purchase and deal with parts and portions of the lands within the area without being required to purchase and deal with the whole of the lands within the same.

13. The town council may in carrying out any of the purposes of this scheme form any part or parts of the area as they may consider necessary into and may maintain or require the same to be maintained as open spaces or they may sell or dispose of the lands or property herein-before authorised to be dealt with by them or any part of the same.

14. The town council if satisfied that the retention of any existing buildings in the area is expedient and is not inconsistent with properly carrying out the scheme may with the approval of the Secretary for Scotland in place of acquiring such buildings agree with the owner of any such building for the execution either by the town council or by such owner of such alterations upon such building and its surroundings or for the extension of the site of such building all as the town council may consider to be necessary to render any such building sanitary and to adapt it to the scheme and that upon such terms and conditions as may be so agreed Provided that if the town council and such owner fail to agree the town council may acquire the property execute any such alterations and repairs as they consider necessary and sell or deal with the property in such way and manner and for such price or consideration as they deem most expedient.

15. In the event of the town council finding it necessary for the purposes of the scheme to acquire the property numbered 45 on the map and to demolish the same in whole or in part they may agree with the owner of the said property for the rebuilding or the alteration thereof on such terms and conditions as may be so agreed and failing agreement the town council may deal with the said property in their discretion in carrying out the scheme.

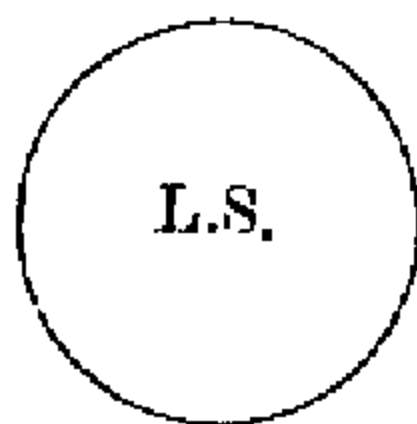
[Ch. cxix.] *Port Glasgow Improvement Order* [5 EDW. 7.]
Confirmation Act, 1905.

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16. The town council shall not eject or displace within any period of six months any number of persons of the labouring classes exceeding two hundred persons without having first obtained a certificate from the sheriff that other and suitable accommodation has been provided for such persons and the burgh surveyor and medical officer shall produce to the sheriff a joint report showing the number of houses available for such persons intended to be displaced and the rental condition and situation of such houses.

17. The costs charges and expenses of and incident to the preparation of this scheme and the obtaining of the relative Provisional Order and confirmation by Parliament and the expenses of the execution of this scheme so far as not defrayed out of moneys received by the town council pursuant to the Housing of the Working Classes Act 1890 shall be paid by the town council out of the local rate defined in the said last-mentioned Act to be imposed by them under the provisions of the Public Health (Scotland) Act 1897 or out of moneys borrowed for the purposes of the Housing of the Working Classes Act 1890 or out of any other moneys which the town council may have under their control.

Given under my hand and seal at Whitehall this fifth day of June
one thousand nine hundred and five.



LINLITHGOW.

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FOR
ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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